



PO Box 34757
Bartlett, TN 38184

LEASE AGREEMENT

Residency and Financials

1.1 PARTIES AND OCCUPANTS

This Agreement creates legal rights and obligations. You are encouraged to consult with legal counsel. This Lease Agreement is made and entered into on _____ by and between Legacy Invest Realty, hereinafter designated ("Landlord"), and _____ herein designated ("Tenant(s)").

1.2 LEASE DURATION

The Landlord leases to the Tenant the property known as _____ ("Premises") Beginning on _____ and terminating on _____. Rent shall be paid in monthly payments for the term of this Lease, totaling and paid monthly. Rental payments of _____ a month, payable in advance, and payable thereafter on the 1st day of each succeeding month, without demand or notice, which is expressly waived.

1.3 LEASE PAYMENTS AND CHARGES

If this lease commences on a day other than the 1st of the month, then, in the month following commencement of this lease, Tenant shall pay prorate on the rent to the end of such month, and thereafter the said monthly rental stated above shall be due and payable on the 1st of each succeeding month thereafter, in advance, without demand or notice. Rent proration in the amount of _____ will be paid on or before the first day of the next succeeding calendar month for the period from _____ to last day of the current month. **If the Rent is not paid when due**, then, in addition to any other remedies provided for in this Lease or at law or in equity, the Tenant shall pay an additional sum of **10% of the monthly rent charge; and in addition, five dollars (\$5.00) per day** for each day the rent is overdue and shall commence on the sixth (6th) day of the month and accrue until payment and accumulative fees are received by Landlord. However, in no event is there any grace period for the payment of rent as due on the 1st day of each and every month.. If rent is not paid

when due and the Landlord requests payment in full of all ledger charges, the Tenant must tender cash to an authorized payment center, or tender a cashier's check or money order in the amount to bring their account current, and pay all future rent payments by cash to an authorized payment center or cashier's check or money order on the first (1st) day of each month. Valid payments will be applied to tenant ledger in order of late fees, utility charges, administrative fees, bank charges, maintenance/repairs, legal fees, any additional charges and rent. Rent shall be made payable to Legacy Invest Realty, P.O. Box 34757, Bartlett, TN 38184 or at such other place as Landlord may, from time to time, direct Tenant to make payment. All payments received are accepted with reservation of rights.

In addition, Tenant shall pay to Landlord a fee of Thirty Dollars (\$30.00) for any checks or electronic payment returned for any reason. After two instances of returned payments, all rent and ledger charges must be paid by cashier's check or money order.

Tenants receiving government assistance are responsible to pay their portion of rents each month. Tenants residing prior to the onset of assistance are responsible to pay the full amount due up to the date assistance is to begin. Tenants residing in a property that may have an abatement are responsible to pay their portion of rents through abatement.

This lease is effective immediately upon execution, whether or not tenant moves into or occupies the property.

Nothing herein contained shall restrict Landlord's right to sell or convey the Property subject to this lease; however, Landlord shall notify Tenant in writing of such sale or conveyance and shall provide Tenant with any new address to which rent must be paid.

Proposed move-in/ Proposed lease start date:

Prorated Rent due: \$ _____ (Pro-rated rent + pro-rated pet rent)

Non-Refundable Pet Deposit: _____

1.4 RENT AND POSSESSION

Tenant understands and agrees that Tenant must pay Rent to occupy the Premises and that failure to do so may result in eviction. In the event possession cannot be obtained by Tenant on the date provided for in this lease for any cause or reason, Legacy Invest Realty shall not be liable in damages to the tenant.

1.5 BREAK DOWN OF MONTHLY CHARGES

Monthly Rent : _____

Pet Rent: _____

1.6 THIS RENTAL AGREEMENT is based upon the following statement of facts and any incorrect information provided by Tenant may be grounds for this lease to be terminated:

1.7 PLEASE READ CAREFULLY

REPEATED FAILURE TO PAY RENT ON TIME AND ACCEPTANCE OF LATE CHARGES BY LANDLORD SHALL NOT ESTABLISH A PRACTICE, CUSTOM, OR OBLIGATION TO ACCEPT FUTURE RENT WHEN PAST DUE AND SHALL NOT WAIVE ANY DEFAULT WHICH THEY MAY OTHERWISE CLAIM.

1.8 NON-REFUNDABLE CLEANING & MAINTENANCE FEE

At the time of the execution of this Lease the Tenant has paid Legacy Invest Realty the sum of _____ as a non-refundable cleaning and maintenance fee. Tenant must stay the entire length of lease, or all fees and deposits will be forfeited. If the tenancy exceeds lease term the Landlord agrees that upon the termination of the Lease, after lease term, Legacy Invest Realty will refund an amount of money to the Tenant equal to the cleaning and maintenance fee less any charges for damage to the property (other than ordinary wear and tear but including full painting of Property), clean up or removal of any debris or possessions abandoned by the Tenant, and lawn and maintenance which was the duty of the Tenant, at the time the Tenant vacates the property. Tenant automatically forfeits the cleaning and maintenance fee if the Property keys are not returned at move out or Tenant vacates the Property with a balance owed. This offer is made as an inducement to the Tenant to maintain the property and to continue the occupancy for a term in excess of ONE (1) year. Per Missouri Landlord and Tenant Act Chapter 441 and 535 RsMo, IN NO EVENT SHALL THE CLEANING AND MAINTENANCE FEE BE USED BY TENANT AS ANY PART OF UNPAID RENT OR FEES.

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1.9 IT IS UNDERSTOOD AND AGREED THAT BEFORE VACATING TENANT MUST GIVE THIRTY (30) DAYS NOTICE IN WRITING AS FOLLOWS

Upon the expiration of the original Agreement, and at the exclusive discretion of the landlord, it is expressly understood that this lease shall be automatically renewed for another YEAR with a three percent (3%) increase with the rent due and payable on the First (1st) of the month, without demand or notice, on the corresponding day of said such year and so on from year to year unless either party hereto at least 30 days prior to the commencement of such renewal, by the 1st day of said month, shall give written notice to the other party of an intention to surrender or have possession of said premises on the day of expiration of a designated yearly term. Notice hereunder to be given by each party by mail or personal delivery. Upon the expiration of the time specified in said notice, the

Tenant agrees to peaceably surrender the premises clean and in as good condition as they are now, ordinary wear and tear excepted; rent to be paid to the date of surrender and delivery of keys to the premises of the Landlord. If Tenant holds over and fails to vacate on or before the agreed-upon move-out date (end of lease term, or any renewal or extension period, or the move-out date agreed to by the parties), Tenant shall be liable to pay \$200 per month in addition to current rent for the holdover period and shall indemnify Landlord and/or prospective tenants or buyers for damages (i.e., lost rent or profits of sale, lodging expenses and attorney's fees). No verbal notice of intent to vacate will be accepted. A 30-day written notice to vacate must be given prior to the lease expiration.

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1.10 THE TENANT AGREES not to vacate the premises if any maintenance fees and/or rental balance are in arrears.

1.11 THE LANDLORD RESERVES THE RIGHT TO consider the property abandoned and the lease voided if utilities (light, gas, water, and sewer) are turned off for non-payment or disconnected by Tenant.

1.12 THE LANDLORD RESERVES THE RIGHT TO raise or lower the monthly Rent by giving written notice to Tenant addressed to the leased premises at least 30 days prior to the commencement of any such ANNUAL renewal.

1.13 THE TENANT AGREES TO pay all costs, expenses, and charges, including reasonable attorney's fees, incurred in any proceedings to enforce any provisions herein; or collecting any sums due hereunder or obtaining possession of said Premises. Tenant(s) hereby knowingly, intentionally, voluntarily, and irrevocably waives any right to a trial by jury in any action arising out of or relating to this Agreement, whether based on contracts, tort, or any other theory.

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1.14 IT IS FURTHER AGREED THAT after the services of notice, commencement of suit or final judgment for possession of said premises, the Landlord may receive and collect any rent or other sums owing. Partial payment of rent or other sums owing by Tenant and acceptance of same by Landlord shall not waive or prejudice any of Landlord's rights to the recovery of possession of the premises under this rental agreement as a result of said notice, suit, or final judgment. Acceptance by Landlord of the full amount of delinquent rent and other sums owing hereunder may, at the Landlord's option, re-establish the relationship of Landlord and Tenant previously existing between them at the same rental terms and subject to the same mutual rights and duties expressed in this agreement as existed prior to said notice, suit, or final judgment.

1.15 IF TENANT SHOULD FAIL to pay any of the aforesaid installments of rent when due or should fail to perform or observe any of the covenants, agreements or obligations herein made and assumed by said Tenant, then this Agreement may be forfeited and hereby become null and void at the option of the Landlord, or its agent, without any demand or notice to the Tenant, demand and notice being hereby expressly waived. The Tenant further agrees that no set-off in payment of rent shall be allowed unless agreed to in writing by the Landlord or his agent.

1.16 THE TENANT AGREES NOT TO assign or sublet said Premises, or any part of same, or in any manner transfer this Agreement without written consent of the Landlord. Tenant agrees that he shall not allow any more persons to occupy the premises than the number shown on the Rental Application and further agrees that said premises will be occupied solely for the purposes of a family dwelling. Airbnb and VBRO or other such occupancy are strictly prohibited. Tenant agrees that the Property shall be used and occupied as a residence only and shall not be used for any other purposes without the prior written consent of Landlord. However, Tenant may conduct lawful business by computer, mail, telephone or facsimile from the Premises so long as customers, clients, patients, employees or other business associates do not come to the Property for business purposes. Nothing in this paragraph shall prohibit the Tenant from hosting reasonable numbers of guests for limited periods of time. Any persons occupying the Premises for more than 5 consecutive days or for more than 10 days per month must receive written approval from Landlord. Any proposed occupant of the Premises, not a party to this Agreement, shall be reported to the Landlord or Landlord's representative prior to such party taking occupancy and shall be subject to the same application procedure as the original Tenant and the Landlord may reject the proposed additional occupant for any lawful reason. Any violation of this shall constitute a default under this Agreement and Landlord may terminate the lease upon written notice to Tenant.

1.17 TENANT SHALL PROVIDE proof of utilities service in tenant's name **prior to move in**. Tenant agrees to pay for all utilities and services for the Premises and the following charges, including without limitation, water, sewer, gas, trash, electric, heat, phone, cable, and other utilities used in the Premises as they become due. Tenant will be billed for any utility expenses not put into their name as agreed in this Agreement and for any charges incurred shall the utilities be disconnected to the neglect of the Tenant. If any of the utility accounts in the tenant's name become delinquent and are paid by Landlord on behalf of Tenant, then Tenant will be responsible for reimbursing the cost of utilities paid on behalf of the tenant to the Landlord, along with a \$50 administrative fee. Such charges shall be added as rent and are due and payable immediately.

1.18 TENANT HAS EXAMINED the Premises and all furnishings, appliances, fixtures, and any carbon monoxide and smoke detector(s) contained therein. Tenant acknowledges that as of the commencement date of this lease, no repairs, are required to be made by Landlord prior to delivery of the Premises and Tenant hereby accepts the same as being clean and in good working condition except those noted on the Legacy Invest Realty's Move-In Check List. Owner does not warranty, guarantee, or promise basements to be dry or without moisture. Items stored in basements are done so at the residents' risk. Resident must ensure sump pump is plugged in and functioning and that discharge lines are connected and draining into the allocated location. Resident agrees to indemnify and hold owner and the property of owner, including said premises, free and harmless from any and all liability, claims, loss, damages, or expenses resulting from items stored in basements. Tenant(s) are encouraged to obtain renters insurance for personal property.

By initialing below, you acknowledge and agree to the terms in Section 1.

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1.19 THE TENANT AGREES by signing this lease, that the Landlord has the right and privilege to use these forms of communication with the Tenant to collect any rental charges, repair charges, late fees, utilities, legal fees and any other applicable fee or charge on Tenant's ledger: **email, texting, phone calls, mail and legal service.**

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2. Policies and Procedures

2.1 RESTRICTIONS

In addition to the limitations set forth in this Agreement, Tenant agrees to comply with all recorded restrictions, easements, zoning laws or other legal restrictions regarding the use of the Premises. In addition, Tenant agrees that from time to time Landlord may publish rules and regulations regarding the use of the Premises and Tenant agrees to abide by the same as if such rules and regulations are included in this Agreement; it is understood that failure to abide by such rules and regulations will constitute a default under this Agreement.

2.2 TENANT SHALL NOT UNREASONABLY withhold consent to the Landlord to enter into the dwelling unit to inspect the premises, make necessary or agreed repairs, decorations, or improvements, supply necessary or agreed services, or exhibit the dwelling unit to prospective or actual purchasers, appraisers, tenants, workman or contractors. The Landlord may enter the dwelling unit without consent of the tenant in case of emergency. Emergency means a sudden, generally unexpected occurrence or set of circumstances

demanding immediate action including all government housing authority department inspections.

2.3 TENANT IS RESPONSIBLE TO keep all appointments requested by Landlord, Home Inspector, Appraiser, and all government housing authorities. Tenant shall be subject to service charges and/or rent abatements not paid by any government housing authority for any missed appointments, at the sole discretion of the Landlord or Landlord's representatives. Such service charges or rent abatements shall be added as rent to the tenant's ledger and are due and payable immediately. Tenant shall also be responsible for timely signing all required documentation from any government housing authority or landlord to remain in premises. Lack of timely signing or neglect of signing appropriate and required documentation shall be considered a breach of this entire lease agreement. Tenant shall be subject to service charges and/or rent abatements, or full rental charges for failure to sign any appropriate government housing authority documentation, at the sole discretion of the Landlord or Landlord's representatives. Such service charges or rent abatements shall be added as rent to the tenant's ledger and are due and payable immediately. Tenant understands such neglect on their part shall lead to a default in the lease agreement and the tenant shall be subject immediate eviction.

2.4 PETS

Tenant shall not keep pets of any kind, whether dog, cat, fish, bird or reptile on or about the Premises without the prior written consent of Landlord; and if Tenant is given permission to have a pet on the Premises, Tenant agrees to properly apply for a pet, pay a non-refundable pet fee in the amount of: \$300.00 PET DEPOSIT, PER PET. Tenant will pay an additional \$25.00 MONTHLY Pet Rent PER PET. Tenant further agrees to properly register each pet in accordance with municipality regulations as required. Tenant shall be solely responsible for all associated fees for registration of each pet. Tenant shall be fully responsible for any permit fees, registration fees, fines, penalties and interest for failure to properly register each pet with the applicable municipality.

Landlord restricts aggressive breeds of dogs from visiting and/or residing on Premises. Breed restrictions prohibited include but are not limited to: American Bull Dog, American Staffordshire Terrier, Chow, Doberman, German Shepard, Pit Bull, Presa Canario, Rottweiler, and Wolf Hybrid. Other breeds may also be restricted at Landlord's discretion. If Landlord, at the Landlord's sole discretion, determines that the pet is one of these breeds or a mix thereof, the Landlord may insist on immediate removal of the pet. Animals trained to assist disabled individuals are permitted. If Tenant is found to have an unauthorized pet on the Premises, Tenant will be charged additional rent in the amount of seventy-five

dollars (\$75.00) per day the unauthorized pet resides on the premises; and will be considered in default of this Agreement. Vet records and pet application are required.

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2.5 UPON VACATING

Tenant agrees to return all keys to the Premises to the Landlord's office no later than the next business day after the Tenant has vacated the property. Should Tenant fail to return keys to the office of Landlord upon vacating leased premises, Tenant shall be required to pay one hundred twenty-five dollars (\$125.00) plus the cost of supplies for installing new locks or making substitute keys, which may be billed to Tenant.

2.6 EARLY TERMINATION

If Tenant and Landlord agree to a mutual release of lease, Tenant will be required to sign a Settlement and Release Agreement, in which the Non-Refundable Cleaning & Maintenance Fee will be forfeited. Early termination and charges are strictly at the discretion of the Landlord. If the Tenant vacates the said Premises prior to lease expiration without notification, thereby violating the terms of this Agreement, Tenant shall forfeit the Non-Refundable Cleaning & Maintenance Fee and shall continue to pay rent until a new tenant takes occupancy of the Premises or until the lease expires, whichever occurs first. If Landlord has taken legal action towards Tenant for default of this Agreement, Landlord may hold Tenant liable for rent and other indebtedness accrued to the date the lease ends, Tenant shall be liable for all other rent and indebtedness that otherwise would have been payable by Tenant during the remainder of the term had there been no default.

2.7 MILITARY CLAUSE

In the event the Tenant is drafted into, transferred, or discharged/released by the U.S. Military, Landlord agrees to terminate the lease provided the Landlord receives at least a fifteen (15) day notice from Tenant and all rents are paid until the end of the period of notice.

2.8 DEFAULT

Tenant shall be in breach of and default of lease if Tenant is in violation of any section of this Rental Agreement, including Section 2.3, of it Tenant is dishonest to Landlord (including false information on the initial application). Shall the Tenant become in breach of or in default of Agreement, Landlord shall have all remedies, rights, and authority available at law or in equity against and with respect to the Tenant. In the event of default by the Tenant of ANY provision of this Agreement (including, but not limited to, the obligation to pay rent), Landlord, shall, upon notice to quit possession, be entitled to re-enter and take

possession of the Premises, or to remove the Tenant, or any other person(s) occupying the Premises by the proper procedures set forth in applicable law and Tenant shall quit and surrender the Premises to Landlord. If Tenant is in default for any reason, Landlord may file a suit for Lease Agreement Termination after giving Tenant fourteen (14) days written notice of Lease Agreement Termination. Such notice will state that Tenant's Lease Agreement will terminate fourteen (14) days of Tenant's receipt of the notice unless the breach is remedied within the fourteen (14) day period.

Upon default, the Tenant's obligation to pay rent for the full term shall not be terminated, but shall be due and accelerated. However, that Tenant shall be entitled to credit for any rentals thereafter collected by the Landlord for re-entering the Premises during any part of the balance of the term hereof, less any expenses in connection therewith. The remedies provided for in this paragraph shall be in addition to the other remedies provided for herein or as provided by law. In addition, the Landlord in any litigation shall be entitled to recover any and all court costs, litigation expenses, and all attorney's fees involved in enforcing the provisions of this Agreement. Tenant's right of possession shall cease and terminate immediately after the notice set forth above and Landlord shall be entitled to the possession of the Premises and may remove all persons and property therefrom and re-enter the Premises without further demand of Rent or demand of possession, either with or without process of law and without becoming liable to prosecution therefor, any further notice to quit or intention to re-enter being hereby expressly waived by Tenant.

Tenant agrees that regardless if tenant abandons property or under a court ordered execution for possession of the premises, neither the landlord nor his or her successors, assigns, agents, nor representatives shall be liable to any tenant or subtenant for loss or damage to any household goods, furnishings, fixtures, or any other personal property left in or at the dwelling by the tenant or subtenant of such dwelling, by the reason of the landlord's removal or disposal of the property except for willful, wanton, or malicious acts or omissions. It is the duty of the tenant to notify landlord of tenant's intentions to make arrangements to recover tenant's possessions.

2.9 LANDLORD'S COVENANT OF QUIET ENJOYMENT AND RIGHT OF ENTRY

Landlord shall put the Tenant in possession of the Premises on the first day of the term set forth herein, and will permit the Tenant to hold, occupy and enjoy the Premises during the term of the tenancy without interference by Landlord, provided that Tenant observes and performs all agreements and obligations made by Tenant in this Agreement, and provided that Landlord shall have the right to enter the Property in the following circumstances: 1. at any time, in case of an emergency, for the protection or preservation of the Premises; 2. after reasonable notice to Tenant and at a reasonable time to repair the Premises; 3. after

reasonable notice to Tenant and at a reasonable time to inspect the Premises for any damage or destruction or to determine whether the Tenant is performing the agreements and obligations set forth herein; 4. at any reasonable time, upon reasonable notice to Tenant, to show the Premises to prospective tenants, purchasers and/or lenders; or 5. in accordance with Missouri law when Tenant has abandoned the Premises.

2.10 PROPERTY AND STRUCTURE ALTERATIONS

Tenant shall not repair, alter, remodel, change, add, paper, paint, decorate, install, attach, remove, exchange or make any structural changes to the property without Landlord's approval by written consent. This shall include fences, security alarm systems, appliances or equipment such as air conditioning, heating, refrigerating or cooking units, radio or television antennae; nor drive nails or other devices into the walls or woodwork (a reasonable number of picture hangers excepted), nor refinish or shellac wood floors. All additions, fixtures or improvements made by Tenant, including fencing around property, except movable household furniture, shall become the property of Landlord and remain on the Leased Premises as part of the premises, and shall be surrendered with the Lease Property at the termination of this Lease. Further, tenant shall be solely responsible for any damages caused by an approved or unapproved installation by the tenant.

Tenant shall be liable for the entire cost of all key and lock replacements. Tenant shall not change the locks or add a deadbolt lock without Landlord written consent. Should locks be changed without written consent, Tenant will be charged for the locks to be changed by Landlord and key(s) will be made available at the Landlord's office. Additionally, a key replacement of \$75 for any key needed will be charged by the Landlord. Should a lock change need to be performed by Landlord, it will result in an additional charge of \$125 plus the cost of supplies.

All keys must be returned to Landlord by Tenant upon termination of lease. Tenant will be charged \$125 plus the cost of supplies should all keys not be returned upon termination of lease.

No satellites or antennas of any kind may be installed, secured to or placed on the roof of the property. Any such device must be installed in the yard or upon a post on the property.

Tenant shall not put place-cards, signs or other exhibits in window or any other place that can be viewed by other residents or by the general public.

By initialing below, you acknowledge and agree to the terms in Section 2.

Initial Here: _____

3. Responsibilities

3.1 MAINTENANCE & REPAIRS TENANT RESPONSIBILITY

Tenant agrees to be liable and will pay for stoppage or damage to plumbing, electrical wiring, fixtures or appliances caused by the Tenant's negligence or waste. Tenant is responsible for changing filters in heating/air conditioning units on a regular basis as well as replacing batteries in thermostats as needed. Tenant shall be responsible for inspecting any provided smoke detector(s) and carbon monoxide detectors by the Landlord and changing batteries as required/needed. Tenant shall not remove, or permit the removal of, the appliances, smoke detectors, carbon monoxide detectors, and/or fixtures of the Premises. TENANT IS RESPONSIBLE FOR ALL REPAIRS UNDER \$300.00 FOR SUCH EXPENSES AS GLASS BREAKAGE, LEAKING FAUCETS, DOOR LOCKS, SCREEN DOORS, WINDOW SCREENS, TENANT DAMAGE, SEWAGE STOPPAGE, DRAIN STOPPAGE, ETC.. Tenant is responsible for keeping grounds and premises free of trash and debris. Tenant is responsible for adhering to all owner's association Rules and Regulations, which are posted at any time on the Premises, delivered to the Tenant or adopted by owner's association. Tenant shall be responsible for any fines or charges levied due to violations.

Tenant further agrees and shall be responsible for a \$75.00 trip charge in the event that Tenant denies property access or misses any scheduled inspection or maintenance appointment.

All appliances and/or fixtures are provided in "as is" condition. Landlord shall be responsible for the repair of the structural portions of the Premises and the appliances subject to the terms and conditions of this section. Tenant shall promptly notify Landlord of the need for such repair and the Landlord shall commence repairing any material damage to the structural portion of the Premises that (a) was not caused by the intentional act or gross negligence of Tenant or his/her guests or (b) was not in existence as of the commencement date of this lease. Tenant shall be liable for any and all resulting damages (direct or indirect) if Tenant fails to promptly notify Landlord or does not notify Landlord of the need for such repair.

3.2 BED BUGS AND PESTS

Tenant is responsible for all pest control expenses (bugs, spiders, roaches, rodents, bed bugs, etc.). Tenant acknowledges that Landlord is not aware of any bed bugs in the Premises or any other pest infestation. If Tenant is aware of any previous bed bug or pest infestation, it is the Tenant's responsibility to disclose this information to the Landlord prior to move in. As a preventative measure, Tenant agrees to regularly dust, disinfect, vacuum, and mop Premises. Tenant agrees to inspect all luggage, clothing, and other personal

belongings after traveling or staying in a hotel/motel. Tenant shall report any pest or infestation on Premises to Landlord.

3.3 MOLD AND MILDEW

Tenant agrees and understands that Tenant is solely responsible for maintaining appropriate temperature control in the Premises, keeping the Premises clean, and for taking necessary measures to prevent mold from accumulating in the Premises. If mold and/or mildew occurs on a small non-porous surface, Tenant agrees to clean the areas with soap and a small amount of water, let the surface dry, and then within 24 hours apply a non-staining, common household cleaner. Tenant agrees to immediately report in writing any visible mold, leaks, overflows, spillage, moisture around vents, discoloration of walls, window frames, doors, baseboards, etc, or any other potential causes of mold and mildew. If Tenant fails to meet any of their responsibilities, Tenant shall be solely responsible for all costs associated with cleaning and mitigating mold from the Premises and repairing damages. Tenant agrees to hold Landlord, and its employees and agents, harmless in the event of any litigation concerning injury, damage or harm suffered due to mold or mildew. Tenant acknowledges and understands that mold may be present upon the Premises. Tenants can help stop mold growth within the dwelling unit by keeping dwellings clean, vacuuming, mopping, using household cleaners, throwing away moldy food immediately, removing moisture from dwelling surfaces by using exhaust fans in bathroom, keeping the shower curtain inside the bathtub or fully closing the shower doors, leaving the bathroom door open until all moisture on mirrors and bathroom surfaces has dissipated, hanging up towels and bath mats so they will completely dry out, and periodically opening windows when the humidity is below 50%. Tenant understands the necessity to lessen the chance of mold growth. More information can be found at www.cdc.gov or www.epa.gov.

3.4 LIABILITY AND INDEMNITY

Tenant agrees to save Landlord and Landlord's representatives harmless from injury or loss sustained by Tenant, tenant(s)' family, or guests including, but not limited to, damages which may result from rodents, insects, rain or windstorm, stoppage of or damage from water, sewer, gas or drain pipes by reason of freezing or any other causes or obstructions or from failure of Landlord to provide heat or utilities or other defects in and around the building and premises. Tenant also agrees to save Landlord and Landlord's representatives harmless from injury or loss sustained by Tenant, its family, or guests including, but not limited to, injury, damage or other losses to such persons or their property caused by theft, burglary, assault, other crimes, fire, ice, smoke, Tenant's negligence or any other causes beyond Landlord or Landlord's representatives control. Tenant agrees to indemnify and hold Landlord and Landlord's representatives free and harmless from any and all liability

for injury to any person or death of any person or persons, or for damage of property arising from the use and occupancy of the Premises by Tenant or from the act or omission of any person or persons, including Tenant. The Tenant having examined the premises and being satisfied therewith, unless listed on the move in checklist, but should any of the aforesaid matters and things occur during the term of this agreement, or while the Tenant is occupying premises, then Tenant shall remedy same promptly at Tenant's expense, unless Landlord by express written agreement undertakes to remedy same. Tenant agrees and understands that trampolines and swimming pools are not allowed on the Premises due to liability and insurance restrictions.

3.5 RENTERS INSURANCE

If the within leased premises or the building of which it is a part is partially or totally destroyed by fire, rain, wind or any other causes, this Agreement may be canceled at the option of Landlord, and rent shall be payable only to the time of such damage. If Landlord decides to repair or restore said premises or building an equitable abatement of rent shall be allowed equal to the time it takes to make such repairs. However, it is understood and agreed by the Tenant that should the damage to the within leased premises be due to negligence on part of the Tenant, occupants, licensees or invites, the Tenant and each of them shall make payment for said damages immediately upon demand. Landlord is not responsible for Tenant's personal property and does not carry insurance coverage for same. I have inspected the premises and observed a smoke detector alarm, in good working order, which I will be responsible for maintaining throughout the term of this lease.

Tenant(s) are encouraged to obtain renters insurance for personal property.

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3.6 SMOKE DETECTORS

The parties agree that the ordinances of the City/County of St. Louis require the Landlord (as owner) of rental property to supply and install all required smoke detectors, to maintain and test all smoke detectors in common stairwells and to provide the occupant with written information regarding detector testing and maintenance. The Tenant (as occupant) is required to provide and maintain batteries for the detectors, to test and maintain detectors within the Leased Premises, and to notify the Landlord, in writing, in case of deficiency of any detector. It is unlawful for any person to remove batteries or in any way make smoke detectors inoperable. Violation of the city ordinance relating to smoke detectors may be punishable by a fine not exceeding \$500.00 or imprisonment for a period not exceeding three months. The Tenant (as occupant) shall replace the battery(ies) once a year or immediately when the low battery beep signal sounds once per minute, insert

appropriate batteries in the position shown in the detector, and then test the detector. To test the detector, hold the test switch button on the cover in for up to 20 seconds until the alarm sounds. Test the detector periodically. Tenant hereby acknowledges that the Leased Premises is equipped with smoke detectors and that they are in good working condition at this time and that Tenant has read the above information on how to maintain the detectors.

I have inspected the premises and observed a smoke detector and alarm and carbon monoxide detector and alarm, in good working order, which I will be responsible for maintaining throughout the term of this lease.

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3.7 RULES AND REGULATIONS

Tenant may use the Premises for residential use and no other use. Tenant shall not disturb, annoy, endanger, or interfere with other Tenants of the building or neighbors. Tenant shall comply with all federal, state, county, and municipal laws governing the use of and occupancy of the Premises, including: Tenant agrees not to commit or permit to be committed any waste whatsoever; nor to create or permit any nuisance to exist on said premises. Tenant further agrees that no articles of food will be prepared in such manner to create objectionable cooking odors in public areas; that the Tenant will not permit anything to be thrown out of the windows or down the courts of said building; that nothing shall be hung from the outside of the windows; that none of the halls, stairways, landings, porches, lawn or grounds shall be used for storage of furniture, cars, bicycles or any other articles. In case of violation of this clause the Landlord shall have the right to remove everything so stored without incurring any legal liability to Tenant in any way; it is further agreed that the exercise of this right of removal by Landlord shall not waive its right of forfeiture of this Agreement for violation of this clause by Tenant. **Tenant shall not smoke inside of the property.** The Landlord reserves the right to make such additional rules and regulations as in its judgment may from time to time be needed for the safety, care, and cleanliness of the premises and for the preservation of good order therein

3.8 IN ADDITION TO THE PRIOR RESPONSIBILITIES SET FORTH HEREIN, TENANT SHALL

1. keep the Property free from obstructions or dangerous conditions that may present a danger to Tenant and/or others.
2. comply with all obligations imposed upon Tenants by applicable provisions of federal, state and/or local building, housing and health codes.

3. use and operate all electrical, plumbing, sanitary, heating, ventilating, air conditioning and other facilities and appliances (including appliances owned by Tenant) in a reasonable manner.
4. keep sinks, lavatories, and commodes open and operating correctly.
5. keep garbage, waste, and debris in proper containers and disposed of regularly.
6. keep all furnace or air conditioner filters or compressors, if any, free of debris and overgrowth and replacing batteries in thermostats as needed.
7. keep grounds free from unsightly objects and debris
8. keep lawn mowed, vines/shrubbery/bushes/trees trimmed and away from house, roof and fence lines, and gutters cleaned and cleared of debris .
9. replace all broken glass.
10. repair damage to interior and exterior walls, electrical or plumbing fixtures, screens, doors and other furnishings.
11. regularly inspect smoke alarms, replacing batteries when needed.
12. be responsible for any and all costs of repair to the Premises associated with or attributable to Tenant's or Tenant's guest(s)' or invitee(s)' intentional or negligent act or omission.
13. be responsible for any and all costs of repair to surrounding property, including Landlord's property, when such repair is necessitated as a result of Tenant or Tenant's guest(s)' or invitee(s)' intentional or negligent act or omission.
14. notify Landlord immediately, in writing, of any repairs needed that, if left unattended, would result in damage to the Premises, such as water leakage, roof damage, wall cracks and/or holes, termite or other insect damage, etc..
15. upon vacating, terminating or abandoning the Premises, remove all personal property and debris, clean the Premises thoroughly.
16. not paint, install, remove, replace or alter wallpaper, furniture or fixtures, doors or window locks, install aerials, cable television, satellite receivers, lighting fixtures, dishwashers, washing machines, dryer or other items without the express written consent of the Landlord; further, Tenant shall not put place-cards, signs or other exhibits in window or any other place that can be viewed by other residents or by the general public.

17. return all keys and/or garage openers to the Premises upon termination of this Lease.
18. not park or store any motorcycles, mopeds, inoperable or unlicensed vehicles, recreational vehicles, trailers, or commercial vehicles on the Property except those specifically allowed in writing by Landlord, and then only in parking spaces designated by Landlord.
19. not store flammable or hazardous chemicals or other substances on the Premises.
20. refrain from activities or conduct of any kind that would interfere with any neighbor's peaceful enjoyment of their property.
21. keep Landlord informed at all times of all Tenants' information changes and phone numbers.
22. not keep a water bed, or any liquid-filled furniture of any kind, without Landlord prior written approval and presentation to Landlord of a certificate of insurance in an amount acceptable to Landlord.

Tenant's failure to abide by any of the terms constitute a breach of this Agreement and Landlord shall be entitled to pursue any available remedy at law or in equity including, but not limited to, an action for damages, injunction or surrender of the Premises to Landlord.

3.9 SMOKING

Smoking is prohibited anywhere in Premises or building where the Tenant's dwelling is located or in any of the common areas or adjoining grounds of such building or other parts of the Premises, nor shall Tenant permit guest(s) to do so. The term "smoking" shall mean inhaling, exhaling, breathing, or carrying of any lighted cigar, cigarette, or other tobacco product, e-cigarettes, vaping devices, or similar lighted product in any manner or form. If Tenant is found to be in violation of this provision, Tenant will be charged additional rent in the amount of one hundred and fifty dollars (\$150.00); and will be considered in default of this Agreement.

3.10 SPACE HEATING

The use of kerosene heaters in the leased premises is forbidden by the Landlord. If the Tenant uses an electric space heater in the leased premises, the Tenant is totally and completely liable and responsible for any damages done to the leased premises which are caused by the use of an electric space heater. The Tenant will pay for the correction and repair of said damages to the leased premises.

3.11 LAWFUL & MORAL CONDUCT

Tenant agrees that the premises, during the term of this Rental Agreement, shall be used only and exclusively for lawful and moral residential purposes and no part of the premises shall be used in any manner whatsoever for any purpose in violation of any laws of the United States of America or the ordinances of state, county, or city laws and regulations and the Tenant will save and hold harmless the Landlord from any such violation. Tenant further covenants and agrees that neither he/she, nor members of his/her family, or other persons connected with the occupancy of the demised premises will indulge in any immoral, disorderly or unlawful act of conduct that will injure the reputation of same or the building of which they are a part or disturb the Tenants of such building or the neighborhood. Illegal drug trafficking, manufacturing, and/or use are a violation of the law of this Rental Agreement, subjecting Tenant to all applicable penalties. In the event, Tenant, guests and/or invitees are involved in the use, distribution, or manufacture of illegal drugs, including methamphetamine, while on Landlord's property, shall be just cause to terminate this lease and evict the Tenant. Local Law Enforcement will also be notified. If any event occurs on the Premises which results in the tenants to contact law enforcement, the Tenant must notify the Landlord within 24 hours of the incident. Failure to report such events will subject the tenant to eviction at the discretion of the Landlord and Tenant will incur all costs associated with damages if a police report is not obtained. Disrespectful behavior, public nuisance, noise disturbances, assaulting or threatening behavior towards any individual of management, contractors, guests, neighbors, or other unknown individuals while on Landlord's property, may result in the Tenant vacating the Premises at the discretion of the Landlord. In such event, the Landlord will issue a notice to the Tenant in writing.

3.12 MOVE-IN CHECKLIST

Tenant agrees that the premises and appliances, as applicable, are in good working order and accepts said premises with no repairs required unless the same said repairs are reported on the Move-In Checklist within seven days from the beginning of said lease with the exception of central heat and air, hot water tank and roof. The exceptions do not apply to tenant neglect. Furthermore, failure to return completed move-in inspection form noting pre-existing conditions precludes the Tenant from claiming any defect in the premises existed upon Tenant's initial occupancy.

3.12 POSSESSION

It is agreed by the parties hereto that in the event the Landlord is not able to deliver possession of the within leased Premises as herein provided, that the said Landlord shall not be liable for any damage for failure to make delivery or in any other manner for loss, but

rent shall be paid by Tenant only from the date that the premises are available and this Rental Agreement shall not otherwise be affected.

3.13 OCCUPY PREMISES

Tenant agrees and understands that there is a limit restriction of two occupants per bedroom. If at anytime, more occupants than meets the restriction lives on the Premises, Tenant will be in default of this Rental Agreement. The Premises are for the sole use as a residence by stated named Tenant(s). Any residing occupant that becomes 18 years of age while residing on the Premises is subject to a criminal background check per the standard of the Rental Agreement. Individuals convicted of a sex crime, armed robbery, or armed felonious assault and anyone on parole for any felonious crime are strictly prohibited from the Premises without exception. Permitting any guest in the Premises with a felony background shall constitute a lease default. Tenant shall not allow any additional tenants to occupy the Premises for the term of this lease without written consent from the Landlord. Any guests residing at the Premises for more than two weeks must be added to the lease and be approved through a background check. The cost of the background check will be the responsibility of the Tenant. If Tenant shall not occupy said premises for a period of ten (10) days or more, with or without payment of rent to Landlord, it shall be deemed that said Tenant has abandoned said premises. In such event, Landlord is hereby granted by tenant the express authorization to enter said premises and remove all personal items belonging to Tenant and also to change the locks on said premises.

In cooperation with Megan's Law database disclosure, Tenant understands that information about specified registered sex offenders and other criminal activity is made available to the public via an internet website in most cities, counties, and states. Depending on an offender's criminal history, this information will include either the address at which the offender resides or the community of residence and zip code in which he or she resides. Property Management Companies, Agents, nor Brokers, if any, may or may not be required to check these websites. If Tenant wants further information, Tenant should obtain information directly from applicable authorities.

3.14 THIS LEASE IS A LEGAL BINDING CONTRACT

This Agreement contains all agreements and conditions made between the parties hereto and no representations or statements claimed to have been made and not contained herein shall vary, alter or modify this agreement in any way. No oral statement of any nature made by any person shall any way vary or modify the terms written in this lease or affect the Landlord/Tenant relationship during the term of this lease. In the event any one or more

clauses or agreements herein are rendered invalid by an act of law it shall not affect the remainder of this Agreement.

3.15 LAWN CARE

For single-family homes, Tenant is solely responsible for all lawn care expenses and needs, including lawn mowing, grass and yard trimming, vine/shrubbery/bush/tree trimming to keep overgrowth away from house, roof and fence lines, and gutters cleaned. If Landlord is required to remediate lawn care or snow removal (per locality ordinance), Tenant is responsible for all service calls and expenses to remediate such issues. For multiple-unit homes, Tenant is solely responsible for all lawn care expenses on private entrance areas unless otherwise noted. If Landlord is required to remediate lawn care or snow removal (per locality ordinance), Tenant is responsible for all service calls and expenses to remediate such issues.

3.16 CLEANING FEE

Tenant agrees that Two Hundred Dollars (\$200.00) will be deducted from the Non-Refundable Cleaning & Maintenance Fee for carpet cleaning/sanitation and/or wood floor cleaning/sanitation. Should the actual cost to clean/repair the carpet/wood floor exceeded this agreeable amount due to the tenant's actions that caused the carpet cleaning/sanitation and/or wood floor cleaning/sanitation to exceed ordinary wear and tear, then the Tenant will be liable for the actual carpet cleaning/sanitation and/or wood floor cleaning/sanitation amount.

3.17 UTILITIES

In a Single Family Rental Unit, the Tenant is responsible for ALL utilities in the Rental Unit, including but not limited to electricity, water, sewer, gas and trash. Any utilities remaining in owner's name shall be billed to the tenant's ledger and become due and payable. All accounts in the tenant's name should be paid timely. If any of the utility accounts become delinquent, then Landlord will bill the utility balances to Tenant's ledger and Tenant will be responsible for reimbursing the cost of utilities paid on behalf of the tenant to the Landlord, along with a \$50 administrative fee. Such charges shall be due and payable immediately. Non-payment of utilities are grounds for eviction.

Tenant also agrees and is responsible for providing tenant account numbers to the Landlord for all utilities required to be in the Tenant's name before move-in.

STL County Single Family Unit: SEWER and TRASH - these utilities remain in the owner's name and will be billed to your tenant ledger and become due and payable. ELECTRIC, WATER, GAS shall be required to be put in the tenant's name before move-in.

STL City - Single Family Unit: WATER, SEWER and TRASH - these utilities remain in the owner's name and will be billed to your tenant ledger and become due and payable . GAS and ELECTRIC shall be required to be put in the tenant's name before move-in .

Multi-Family Units in STL City and County: Certain units can have separate utility lines. Unless otherwise noted and addressed with tenant prior to move-in, WATER; SEWER; TRASH are included in the RENT. GAS and ELECTRIC shall be required to be put in the Tenants name before move-in.

Initial Here: _____

3.18 DRAIN STOPPAGES

As of date of this agreement, owner warrants that the dwelling's sewage drains are in good working order and that they will accept the normal household waste for which they were designed. They will not accept things such as paper diapers, sanitary napkins, tampons, children's toys, wads of toilet paper, balls of hair, oil, grease, table scraps, clothing, rags, sand, dirt, rocks, or newspapers. Resident agrees to pay for clearing the drains of any and all stoppages except those, which the plumber who is called to clear the stoppage will attest in writing, were caused by defective plumbing, tree roots, or acts of God.

3.19 CONTACT INFORMATION

Tenant shall keep Landlord informed at all times of Tenant's current phone numbers and email addresses.

By initialing below, you acknowledge and agree to the terms in Section 3.

Initial Here: _____

4. General Clauses

4.1 INSPECTION OF PREMISES

Tenant agrees that Tenant(s) has inspected the Premises prior to the execution of this Agreement and finds the same to be in good, safe and clean condition and repair except as may be otherwise noted in writing. Tenant further agrees that Tenant and occupants will keep the Premises in as good, safe and clean condition and will keep the Premises free from any debris, trash or filth. Further, Tenant will not do anything to create a danger of fire or which may cause an increase in insurance rates or a cancellation of insurance. Upon expiration of this Agreement or termination, Tenant agrees to surrender possession of the Premises, appliances and furnishings, if any, in good, clean and safe, condition and repair, ordinary wear and tear excepted. Tenant agrees that no representation as to condition has

been made and that no promise to decorate, alter, repair or improve the Premises has been made by Landlord except that which has been set forth herein. Landlord will be conducting a Move-In Inspection, 90-Day Inspection, 1 Year Inspection, and a Move-Out Inspection.

4.2 SAFETY & SECURITY

The Tenant acknowledges they are responsible for their own safety and security. Anything herein to the contrary, notwithstanding, the Landlord does not warrant, represent, guarantee or promise the safety and security of the Tenant or Tenant's property against criminal actions of third parties. The Tenant acknowledges that it is the tenant's exclusive responsibility to protect the Tenant's person, property and interests from any acts of crime and the Tenant hereby releases and agrees to hold the Landlord harmless from any and all claims which may arise out of the criminal acts of third parties.

4.3 LEAD-BASED PAINT

To the best of Landlord's knowledge, information and belief, there has been no testing for lead paint in the subject property and the said property may contain lead paint. The Tenant has been given the opportunity to inspect the premises for existence of lead paint and accepts said property in its current condition without any warranty or representation on behalf of the Landlord that the property is free from lead paint and agrees to release the Landlord from any and all liability which might ever be claimed as a result of the existence of lead paint on the premises. See brochure/addendum.

4.4 VEHICLES

Tenant further agrees that any vehicle owned by the Tenant remaining on the Landlord's property after the termination of this Agreement may be immediately removed by the Landlord with full immunity from damages for such removal. No vehicles are to be parked on the grass or any unpaved area. No vehicles are to be stored in any area without the consent of Landlord. Only licensed vehicles that are in a driveable condition can be parked in the designated parking area of this property. Tenant further agrees that vehicles that leak oil must not be parked in the driveway. Any stains on the concrete driveway must be cleaned by the Tenant. In the event Tenant does not clean the driveway, Landlord will have the driveway cleaned at Tenant's expense and this charge will be added to next month's rent which will be payable in full immediately. . Disassembly of any motor vehicle of any kind in, on, or near the property without written consent of landlord is prohibited. Any vehicles found to be illegal will be towed at tenant's expense. Any code enforcement fines due to illegally parked vehicles or abandoned/disabled vehicles, owned by tenant or tenant's guest, will be paid in full by tenant.

4.5 HOLDOVER

If Tenant fails to vacate the premises on or before the termination of the lease period, or renewal or extension period, or the move-out date agreed to by the parties, Tenant shall be liable to pay \$200 per month in addition to current rent for the holdover period and shall indemnify Landlord and/or other prospective tenants or buyers for damages such as lost rentals or profits of sale, lodging expenses and attorney's fees.

4.6 NON-DISCRIMINATION

Landlord complies with the Federal Fair Housing Act and other laws relating to discrimination in housing. This Agreement and the terms of the relationship with Tenant are entered into without regard to race, color, religion, national origin, ancestry, sex, disability, familial status or any other trait protected by law.

4.7 WAIVER

Waiver by Landlord of any default, breach or failure of Tenant under this Agreement shall not be construed as a waiver of any subsequent or different default, breach or failure. In case of a breach by Tenant of any of the covenants or undertakings of Tenant, Landlord nevertheless may accept from Tenant any full or partial payment or payments hereunder without in any way waiving Landlord's right to exercise the right of re-entry hereinbefore provided for by reason of any other breach or lapse which was in existence at the time such payment or payments were accepted by Landlord.

4.8 ENTIRE AGREEMENT

This Agreement constitutes the entire Agreement between the parties and supersedes all previous discussions and agreements, and this Agreement may not be modified by any party except by initialing changes herein or by a writing signed by all parties. This lease agreement constitutes the sole and only agreement between landlord and tenant respecting said premises or the leasing of said premises and any equipment or personal property subject to this lease by tenant or landlord. It correctly sets forth the obligations of landlord and tenant to each other as of its date, and any agreements or representations respecting said premises, equipment or personal property subject to this lease, or their leasing by landlord to tenant not expressly set forth herein are null and void.

4.9 SEVERABILITY

If any term or condition of this Lease or the application thereof to any person or event shall to any extent be invalid and unenforceable, the remainder of this Lease in the application of such term, covenant or condition to persons or events other than those to which it is held invalid or unenforceable shall not be affected and each term, covenant and condition of this Lease shall be valid and be enforced to the fullest extent permitted by law.

4.10 MISCELLANEOUS

This Lease shall be construed and governed by the laws of the state of Missouri. The parties agree that with respect to all terms of this Agreement, the parties will act in good faith and will not unreasonably withhold consent or Agreement to any remaining terms or determinations described in this Agreement. All parties agree to accept facsimile signatures the same as an original signature. Time is of the essence in the performance of the obligations of the parties. The captions and headings in this Agreement are for convenience only and are not intended to be a part of this Agreement and shall not be construed to modify, define, limit, describe, explain, amplify, or alter any of the terms, covenants, or conditions herein contained

4.11 NON-LIABILITY OF LANDLORD: The Tenant covenants that neither the Landlord nor his agent shall be liable for any damages of injury of the Tenant, the Tenant's agents, or employees or to any person entering the premises or building of which the demised premises are a part, or to goods or chattels therein resulting from any defect in the structure or its equipment, or in the structure or equipment of the structure of which the demised premises are a part, and further to indemnify and save the Landlord harmless from all claims of every kind and nature.

4.12 BROKERAGE RELATIONSHIP DISCLOSURE AND CONFIRMATION

Tenant(s) acknowledges that Legacy Invest Realty, and all of its affiliated licensees are acting on behalf of owner of the property in which the Premises is located as a Landlord's Limited Agent and the source of any commission or payment made to Legacy Invest Realty is from the owner of the property, and information given to Legacy Invest Realty by each Tenant may be disclosed to the owner. The Tenants and Landlord acknowledge that the Legacy Invest Realty licensee made disclosure of this agency status to Tenants no later than the first showing of the Premises.

The parties acknowledge, in instances where they were not being represented under a written agency agreement, that they were provided, at the earliest practicable opportunity during or following the first substantial contact Legacy Invest Realty, a Broker Disclosure Form. Such form was provided prior to the party entering into an agreement for brokerage services with the Licensee or upon the Licensee obtaining personal or financial information from the party, whichever occurred first.

The parties to this transaction understand and acknowledge that Legacy Invest Realty, and its affiliated licensees are not experts in matters of the rental unit's physical condition. Please consult the appropriate experts for advice or determinations in that regard.

The Landlord is a real estate licensee and is acting as a principal party in this contract.

___ Tenant acknowledges this lease agreement is for lease only.

___ Tenant acknowledges this lease agreement is for the lease only.

4.13 FULL DISCLOSURE

The Tenant(s) signing this Agreement understands that this Agreement is a legally binding contract and agrees that they fully understand all the provisions of the Agreement and the obligations and responsibilities of each party, as set forth herein. Tenant(s) acknowledges that they have had the opportunity to consult with legal counsel regarding this Agreement. They further state that they agree to fulfill their obligations in every respect or suffer the full legal and financial consequence of their actions or lack of action in violation of this Agreement. Signature by Tenant(s) on this Agreement is an acknowledgment that they have received a signed copy of the Agreement.

4.14 ACTS CONSTITUTING BREACH BY TENANT

Resident shall be guilty of material breach of this lease should resident:

- 1) Fail to pay any rent or other sum becoming payable under this lease on the date it becomes due;
- 2) Default in performance of or breach any provision, term, covenant, or condition of this lease;
- 3) Breach this lease and abandon said premises before expiration of the full term of this lease;
- 4) Allow a receiver to be appointed to take possession of all or substantially all of resident's property unless the receiver is discharged within 30 days after his appointment; or
- 5) Allow any judgment against the resident to remain unsatisfied and unbounded for a period of more than 60 days.

At landlord's option, if tenant has breached this lease or abandoned property, this lease shall continue in effect for so long as landlord does not terminate resident's right to possession, and owner may enforce all of the available rights and remedies to this lease, including the right to recover rent as it becomes due.

By initialing below, you acknowledge and agree to the terms in Section 4.

Initial Here: _____

5. Sign and Accept:

LEASE AND POLICY REVIEW:

Tenant understands and agrees that rent is due on the 1st of each month and is considered late after the 5th day of the month. Tenant understands that he/she will incur a late fee of 10% of monthly rental rate and an additional \$5.00 per day that rent is late.

Tenant understands that dishonored and returned payments for any reason will result in a \$30.00 charge, and that tenant shall be required to make subsequent payments using certified funds.

Tenant agrees to have all accounts for utilities immediately placed in tenant's name with accounts kept current throughout occupancy. Tenant further agrees that tenant will be responsible for reimbursing the cost of utilities paid on behalf of the tenant to the Landlord, along with a \$50 administrative fee. Such charges shall be added as rent and are due and payable immediately.

Tenant understands and agrees that all repairs for \$300.00 or less are 100% tenant responsibility.

Tenant understands and agrees that tenant is required to change air conditioning filter(s) monthly and shall keep the air conditioning unit clean of debris and clear of overgrowth and batteries changed in thermostats when needed. Tenant shall be responsible for all service call charges resulting from Tenant's failure to keep air conditioning filter changed, unit clear of debris and overgrowth or batteries changed in thermostats as needed.

Tenant understands and agrees to keep garbage, waste, and debris in proper containers and disposed of regularly.

Tenant understands and agrees to keep plumbing and sewer lines in good working order. Tenant agrees to not flush paper diapers, wipes (including flushable wipes) sanitary napkins, tampons, children's toys, wads of toilet paper, balls of hair, oil, grease, table scraps, clothing, rags, sand, dirt, rocks, or newspapers. Tenant agrees they will be 100% responsible for clearing the drains of any stoppages resulting from items listed above or anything that deemed to be harmful to plumbing system.

Tenant shall be responsible for a \$75.00 trip charge in the event that Tenant denies property access or misses any scheduled inspection or maintenance appointment.

Tenant understands and agrees that the cost of tenant-caused repairs, including tenant-caused sewer backups and slow drains, are 100% tenant responsibility.

Tenant understands and agrees that tenant shall be solely responsible for pest control, including roaches, ants, spiders, rats and bed bugs.

Tenant understands and agrees to keep lawn mowed, vines/shrubbery/bushes/trees trimmed and away from house, roof and fence lines, and gutters cleaned and cleared of debris.

Tenant understands and agrees to report all current pets to Landlord prior to move-in, and any new pets immediately. Tenant agrees that all pets are subject to pet rents, pet deposits, municipality requirements and charges, and breed restrictions.

By initialing below, Tenant acknowledges to have read this entire document, agrees to the terms and conditions of the entire lease agreement, including the review terms of the lease agreement.

Initial Here: _____

ACKNOWLEDGMENT: By signing below, the parties are not only agreeing to the terms of this Agreement, but are also specifically acknowledging the disclosures and provisions included in the above section relating to the Lead Warning Statement:

Lease Contacts

Role	Name	Home Phone	Work Phone	Mobile	Email
------	------	------------	------------	--------	-------

Lessee: _____ Date Signed: _____

Lessee: _____ Date Signed: _____

Lessor: _____ Date Signed: _____

5.1 ADDITIONAL OCCUPANTS

Additional Occupant Name:

Additional Occupant Name:

Additional Occupant Name:

Additional Occupant Name:

Additional Occupant Name:

